

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C. Docket No. 25-15

**RESPONDENT'S RESPONSES TO
COMPLAINANT'S PROPOSED FINDINGS OF FACT**

Respondent Wallenius Wilhelmsen Ocean AS (“WVO” or “Wallenius”), by and through its attorneys, Clyde & Co US LLP, pursuant to the revised Scheduling Order dated January 21, 2026 (Dkt. No. 13), the Order Addressing Filing Deficiencies and Extending Schedule dated April 20, 2026 (Dkt. No. 17) and the Initial Order dated August 5, 2025 (Dkt. No. 6), submits its Responses to Complainant’s Revised Proposed Findings of Fact.¹

I. The Parties

1. At all relevant times, Complainant Worldwide Nexus Logistics, LLC (“WNL”) was a licensed non-vessel operating common carrier (“NVOCC”) engaged in arranging ocean transportation in the foreign commerce of the United States.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

2. At all relevant times, Respondent Wallenius Wilhelmsen Ocean AS (“WVO”) was an ocean common carrier engaged in the transportation of cargo by vessel in the foreign commerce of the United States.

Response: Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order. Subject to and without waiver of such objection, Respondent admits that it is a common carrier.

¹ Complainant filed two different proposed findings of fact: an initial submission on March 18, 2026, followed by a revised submission on May 4, 2026 (“Revised Proposed Findings”).

3. WNL arranged ocean transportation services through WWO pursuant to Service Contract NASA23-003. (CX-0126–CX-0148)

Response: Admitted.

II. The Shipments

4. In late 2023, WNL arranged ocean transportation services for three boats through WWO for delivery to San Antonio, Chile.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

5. The shipments were booked with WWO under booking numbers USSAV2348017, USSAV2348173, and USSAV2351444. (CX-0001–CX-0125)

Response: Admitted.

6. WWO issued Sea Waybills US2387246, US2387773, and US2387995 covering the shipments. (CX-0519–CX-0524)

Response: Admitted.

7. The shipments were loaded aboard the vessel MORNING LADY voyage EC311. (CX-0519–CX-0524)

Response: Admitted.

III. Carrier Responsibility for Cargo Manifest Transmission

8. Ocean carriers are responsible for preparing and transmitting vessel cargo manifests to customs authorities at ports of call.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

9. The cargo manifest identifies cargo carried aboard the vessel and is relied upon by customs authorities to verify cargo entering or transiting through their jurisdiction.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

10. The preparation and electronic transmission of cargo manifests are performed by the ocean carrier and its operational personnel and agents.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

11. Shippers and NVOCCs such as WNL do not control the carrier's electronic cargo manifest transmission process.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

IV. Agency Relationship with Ian Taylor

12. WWO utilized Ian Taylor agencies, including Empresas Taylor Peru, as its port agent in connection with the voyage of MORNING LADY EC311.

Response: Denied. Respondent objects to this allegation on the grounds the allegation fails to state a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

13. Ian Taylor personnel communicated with WWO regarding operational and customs matters relating to cargo discharged and seized in Pisco, Peru.

Response: Denied. Respondent objects to this allegation on the grounds the allegation fails to state a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

14. Those communications occurred within the scope of Ian Taylor's role as WWO's appointed port agent. (CX-0506–CX-0518 (WWO-0134–0146))

Response: Admitted.

V. Transmission of the Vessel Manifest

15. Prior to the vessel's arrival in Pisco, Peru, the cargo manifest for MORNING LADY EC311 was electronically transmitted to Peruvian customs authorities.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

16. The transmitted manifest did not include the shipments documented under Sea Waybills US2387246, US2387773, and US2387995. (CX-0525–CX-0553)

Response: Admitted.

VI. Carrier Documentation Error

17. Internal communications between WWO personnel and its port agent confirm that the omission occurred during the electronic transmission of the vessel manifest.

Response: Denied. Respondent objects to this allegation on the grounds the allegation fails to state a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

18. Those communications state that the omission occurred due to an “involuntary mistake.” (CX-0509–CX-0510 (WWO-0137–0138))

Response: Admitted.

19. The communications further confirm that the electronic transmission did not include the information for Sea Waybills US2387246, US2387773, and US2387995. (CX-0509–CX-0510 (WWO-0137–0138))

Response: Admitted.

VII. Discovery of the Manifest Omission

20. On January 5, 2024, Respondent’s documentation department transmitted the electronic cargo manifest for the vessel MORNING LADY scheduled to arrive in Pisco, Peru on January 6, 2024, but the information for Sea Waybills US2387246, US2387773, and US2387995 was not included due to an “involuntary mistake.” (CX-0509–CX-0510 (WWO-0137–0138))

Response: Admitted.

21. On January 7, 2024, during vessel operations in Pisco, Peru, Customs Authorities conducted an inspection of the vessel MORNING LADY and determined that three cargo units aboard the vessel were not included in Cargo Manifest No. 127-2023-488 corresponding to the MORNING LADY vessel. (CX-0509–CX-0510 (WWO-0137–0138))

Response: Admitted.

22. Respondent’s internal communication reports that during the customs inspection authorities determined that the three units were not included in the vessel’s cargo manifest and that

“as a consequence of this, the Customs Authorities decided to seize the 03 mentioned units.” (CX-0509–CX-0510 (WWO-0137–0138))

Response: Admitted.

VIII. Seizure of the Cargo

23. Following the seizure, the cargo was discharged from the vessel and stored at the Port of Pisco, Peru. (CX-0509–CX-0510 (WWO-0137–0138))

Response: Admitted.

IX. Carrier Communications Following the Seizure

24. Following the seizure, WWO personnel and agents exchanged internal communications regarding the manifest omission and the customs action. (CX-0509–CX-0510)

Response: Admitted.

25. In those communications, WWO’s port agent stated: “We sincerely apologize for all inconveniences caused and please be sure that we bear all expenses involved and we are working and taking control so that it will not happen again.” (CX-0509–CX-0510 (WWO-0137–0138))

Response: Admitted.

X. Corrected Manifest

26. Following discovery of the omission, a corrected vessel manifest was generated reflecting the previously omitted Sea Waybills. (CX-0554–CX-0585)

Response: Admitted.

27. The corrected manifest demonstrates that the shipments should have appeared in the original manifest transmitted to customs authorities.

Response: Denied. Respondent objects to this allegation on the grounds the allegation asserts a generalized legal conclusion rather than a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

XI. Financial Impact

28. The seized cargo consisted of boats belonging to customers of WNL.

Response: Denied. Respondent objects to this allegation on the grounds the allegation fails to state a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

29. WNL issued invoices and received payments for the transportation services it arranged in connection with the shipments. (CX-0323–CX-0345)

Response: Admitted.

30. The seizure of the cargo caused financial losses to WNL arising from the disruption of transportation services it arranged in connection with the shipments, including loss of commercial opportunities, customer-related impacts, and resulting business damages associated with the affected shipments.

Response: Denied. Respondent objects to this allegation on the grounds the allegation fails to state a specific, record-supported factual proposition, and thus fails to comply with the Initial Order.

XII. Key Liability Findings

Response: Respondent denies and objects to this section in its entirety. The statements contained in this section recite argumentative characterizations and assert “liability findings” that constitute legal conclusions. Insofar as the underlying facts of the below

assertions are concerned, Respondent has already admitted or denied such facts as appropriate in the preceding sections.

31. The cargo manifest transmitted for the vessel MORNING LADY did not include the shipments documented under Sea Waybills US2387246, US2387773, and US2387995. (CX-0525–CX-0553; CX-0509–CX-0510 (WWO-0137–0138))

Response: Denied for the reasons stated in Response to Heading XII above.

32. Internal communications confirm that the omission occurred during the electronic transmission of the manifest and resulted from an “involuntary mistake.” (CX-0509–CX-0510 (WWO-0137–0138))

Response: Denied for the reasons stated in Response to Heading XII above.

33. During inspection of the vessel in Pisco, Peru, customs authorities determined that three cargo units aboard the vessel were not reflected in the transmitted cargo manifest. (CX-0509–CX-0510 (WWO-0137–0138))

Response: Denied for the reasons stated in Response to Heading XII above.

34. Because those shipments were not reflected in the transmitted manifest, Peruvian Customs authorities seized the three cargo units following the inspection. (CX-0509–CX-0510 (WWO-0137–0138))

Response: Denied for the reasons stated in Response to Heading XII above.

35. The omission occurred while the shipments were in the custody and operational control of Respondent and its agents responsible for manifest preparation and transmission. (CX-0509–CX-0510 (WWO-0137–0138))

Response: Denied for the reasons stated in Response to Heading XII above.

RESPONDENT'S PROPOSED FINDINGS OF FACT

Respondent Wallenius Wilhelmsen Ocean AS (“WWO” or “Wallenius”), by and through its attorneys, Clyde & Co US LLP, pursuant to the revised Scheduling Order dated January 21, 2026 (Dkt. No. 13), the Order Addressing Filing Deficiencies and Extending Schedule dated April 20, 2026 (Dkt. No. 17) and the Initial Order dated August 5, 2025 (Dkt. No. 6), submits its Proposed Findings of Fact.

1. Each booking confirmation expressly incorporates WWO’s standard Terms and Conditions (“WWO Terms”).

Q· And so three times on this booking confirmation Wallenius specifies that the booking is subject to Wallenius's terms and conditions, correct?

A· I see it, yes.

RX51.

2. Each bill of lading expressly incorporates the WWO Terms.

Q· And then here again on the right hand side of the bill of lading it says merchant agrees to the terms of carrier’s standard bill of lading which apply to this waybill, as well as such terms, conditions, limitations and general business terms and conditions as appearing at www.WallenusWilhelmsen.com, correct?

A· Correct.

RX52; CX520; CX522; CX524.

3. Complainant reviewed the WWO Terms before filing the subject dispute.

Q· ... you agree that these are the terms and conditions that are available at WalleniusWilhelmsen.com, correct?

A· Correct.

Q· Okay. And have you seen those terms and conditions before?

A· I have.

Q· Did you review these terms and conditions before filing this dispute?

A· I -- I -- I have, yes.

RX55.

4. Clause 17 of the WWO Terms states, “[w]here compulsorily applicable, this contract is governed by COGSA.” RX100.

5. Clause 18 of the WWO Terms states: “[i]f the Merchant has not declared a higher value on the face of this Bill of Lading and paid extra freight for the higher declaration, the Carrier’s liability is in any event limited to USD 500 per Package or for Goods not shipped in packages, per Customary Freight Unit.” RX100.

6. Clause 20 of the WWO Terms provides that “the Carrier shall be discharged from any liability whatsoever in respect of the Goods unless suit is brought within one year after their delivery or the date on which they should have been delivered.” RX100.

7. Clause 21 of the WWO Terms provides that the WWO Terms “shall apply in any action against the Carrier for any loss or damage whatsoever and howsoever occurring.” RX100.

8. Complainant did not negotiate any deviation from the WWO Terms.

Q. Did you negotiate any deviation from those terms and conditions with Wallenius?

A· No.

RX58.

9. Each bill of lading states that the total number of packages or units shipped was “one.” CX520; CX522; CX524.

10. No declared value was entered on any of the bills of lading.
CX520; CX522; CX524.

11. WNL did not declare any value for the shipments or pay any additional freight.

Q. ... you did not declare any value for any of the three boats,
correct?

A. I did not declare it. It's not standard in shipping.

Q. Did you pay any additional freight for any of the three boats?

A. Any additional freight, no, I didn't.

RX58.

12. WNL did not own the cargo shipped under the bills of lading and never took title
to any of the boats.

Q. Did Worldwide Logistics have any kind of ownership interest or
right to the cargo?

A. No, not at the time of shipment.

Q. At any other time?

A. No.

RX45.

13. WNL did not have any security interest, lien, or property interest in the cargo.

Q. What about any kind of security interest or lien in the cargo?

A. None.

RX45.

14. WNL never received any written assignment or subrogation of rights from any
cargo owner or consignee.

Q. Did you ever receive any writing from any of the cargo owners assigning their rights to Worldwide Logistics?

A. No.

Q. Did you ever receive any written assignment of rights from any consignee?

A. Written assignment, no.

RX65.

15. An initial cargo manifest for the subject voyage, dated January 2, 2024, does not list the three subject shipments. CX526-553.

16. A corrected cargo manifest, dated January 26, 2024, lists the three subject shipments. CX558; CX561.

17. WNL has no firsthand knowledge of any actions taken by Peruvian customs authorities and relies solely on information communicated by WWO.

Q. Do you have any firsthand knowledge of what the Peruvian customs did or why they did it?

A. Yes.

Q. You have firsthand knowledge—can you explain that?

A. Yes, I had a letter from Wallenius that was sent to us stating that there was an error in the manifest and that caused the seizure of the cargo.

Q. So the only knowledge you have about the seizure is what Wallenius told you?

A. Yes, that's correct.

RX69.

18. Complainant could not identify any regulation, policy, or procedure of WWO permitting incorrect manifesting of cargo.

Q. Are you aware of any policy of Wallenius stating that cargo may be manifested incorrectly?

A. No.

RX71.

19. WNL could not identify any prior or subsequent instance, other than the subject voyage, in which WWO failed to manifest cargo.

Q. Are you aware of any prior instances before this subject voyage of the Morning Lady where Wallenius failed to manifest cargo?

A. No.

Q. Are you aware of any subsequent incidents since this subject voyage of the Morning Lady where Wallenius failed to manifest cargo?

A. No.

RX71-72.

20. Complainant admitted that its claim is based solely on the three shipments on the same voyage that were initially excluded from the same manifest in error.

Q. So then your allegation for this claim is based solely on what happened to your three shipments, correct?

A. Yes.

RX77-78.

21. Complainant admitted that it has no evidence suggesting that WWO has a history of manifest errors.

Q. Do you have any evidence of any kind that would suggest that Wallenius has a history of making manifest errors?

A. No, I don't have any.

RX78.

22. Complainant failed to bring this claim, or any other claim, within one year after the subject shipments should have been delivered.

Q. So you filed this complaint on or around June/July 2025, right?

A. Correct.

Q. Okay. And that was more than one year after the cargo was discharged in Peru, correct?

A. Yes, about 18 months.

Q. And more than one year after it should have been delivered in Chile, correct?

A. Yes.

Q. Did you file any other action related to the shipment in any court or with any arbitral tribunal?

A. No.

Q. And you didn't obtain any extension of the time to file any suit?

A. No.

RX78.

23. WNL did suffer any quantifiable loss of any kind as a result of the subject shipments.

Q. Did Worldwide Logistics purchase any of the three boats or make any financial contribution to any of the three boats?

A. No.

Q. And did Worldwide Logistics reimburse any customer for the value of the boats?

A. No.

Q. Did Worldwide Logistics refund the freight or logistic charges to any of its customers related to these shipments?

A. No.

Q. Did Worldwide Logistics pay any charges in Chile relating to these shipments?

A. Yeah, no, it was — we just extended payment to Wallenius bill of lading for Wallenius bill of lading.

Q. So the only payment that you made with respect to these three shipments was the payment to Wallenius for the shipments?

A. Yes, that's correct.

Q. And did you collect payment from your customers Cargo Land and Andy of Miami for those amounts that you paid to Wallenius?

A. Yes, that's correct.

Q. So Worldwide Logistics didn't suffer any quantifiable out-of-pocket loss as a result of these shipments, is that correct?

A. That is correct.

Q. Do you have any documents showing that Worldwide Logistics lost money as a result of these shipments?

A. No, I don't have documents that will show you that.

Q. Do you have any documents showing that Worldwide lost customer contracts as a result of these lost shipments?

A. No documents.

Q. Do you have any documents showing that Worldwide lost revenue as a result of these subject shipments?

A. No, I don't have documents. My reports will only show that Andy of Miami is no longer shipping with me for the period that I have mentioned.

Q. And can you remind me when did Andy of Miami begin shipping with you again?

A. Just three or four months ago.

Q. Do you have any documents showing financial loss from reputational harm to Worldwide?

A. Do I have — I'm sorry, say —

Q. I'll repeat, yes. Do you have any documents which show any financial loss to Worldwide as a result of reputational harm from these shipments?

A. Yeah. No, I don't have any written documents because I don't believe that's how reputational damage is done on paper.

RX92-94.

Dated: New York, New York
June 1, 2026

CLYDE & CO US LLP

By: /s/ John R. Keough
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CERTIFICATE OF SERVICE

I certify that, on June 1, 2026, a true and correct copy of the foregoing Responses to Complainant's Proposed Findings of Facts and Respondent's Proposed Findings of Fact was filed via electronic mail with the Secretary of the Federal Maritime Commission and a copy was served via electronic mail on the following parties:

Jean C. Lopez

Jean.lopez@worldwidenexus.com

Managing Director and Owner, Worldwide Nexus Logistics, LLC

Dated: New York, New York
June 1, 2026

By: /s/ John R. Keough
John R. Keough